

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

BARRY HUTCHINS,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ERIC
SCHMIDT, Shield No. 11428, AND "JOHN DOES
1-8", PERSONS EMPLOYED BY THE CITY OF
NEW YORK,

Defendants.

SUMMONS

Index No.: _____

Date Filed: _____

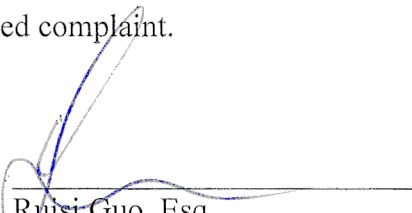
Plaintiff designates
New York County
as the place of trial

The basis of venue is based on
CPLR § 504(3)

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
June 15, 2018


Ruisi Guo, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
BARRY HUTCHINS
26 Broadway, Suite 2100
New York, New York 10004
(212) 500-3273

Defendants' Addresses:

CITY OF NEW YORK, 100 Church Street, New York, NY 10007
NEW YORK CITY POLICE DEPARTMENT, 1 Police Plaza, New York, NY 10038
POLICE OFFICER ERIC SCHMIDT (Shield No. 11428) NYPD 31st Precinct, 451 W 151st St.,
New York, NY 10031

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

BARRY HUTCHINS,

VERIFIED COMPLIANT

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ERIC
SCHMIDT, Shield No. 11428, AND "JOHN DOES
1-8", PERSONS EMPLOYED BY THE CITY OF
NEW YORK,

Defendants.

BARRY HUTCHINS (hereinafter the "Plaintiff"), by his attorneys, LEBEDIN KOFMAN, LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ERIC SCHMIDT, Shield No. 11428, AND "JOHN DOES 1-8", PERSONS EMPLOYED BY THE CITY OF NEW YORK, (hereinafter collectively "Defendants"), upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violation of his rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

PARTIES

2. Plaintiff BARRY HUTCHINS is a natural person residing at 988 Myrtle Avenue, County of Kings, City and State of New York; and was a resident of New York during all relevant times of this action.

3. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the “City”) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

4. At all relevant times, the New York City Police Department (hereinafter “NYPD”) was and is an agency of Defendant City.

5. At all relevant times, Defendant City operated, controlled and managed NYPD.

6. At all relevant times, Defendant ERIC SCHMIDT, Shield No. 11428 (hereinafter “P.O. Schmidt”) was an officer, agent, and / or employee of Defendant City.

7. At all relevant times, the names of Defendants “JOHN DOES 1-8” (hereinafter the “Officers”) are fictitious, and are intended to be individuals engaged in law enforcement, who were involved in the arrest of Plaintiff and violated Plaintiff’s rights, whose names are presently unknown to Plaintiff.

8. At all relevant times, Defendant Officers were officers, agents. And / or employees of Defendant City.

9. At all relevant times, Defendants P.O. Schmidt and Officers were each individually hired, trained, supervised and retained by Defendant City, including its agencies, and all supervisory officers, agents, employees, and / or/ contractors of Defendant City.

10. At all relevant times, Defendants were involved in violating Plaintiff’s rights, and individuals who acted in concert with them, acted or failed to act, as alleged herein, toward Plaintiff under color of the statutes, ordinances, customs, policies, procedures, rules, and / or usage of the State and City of New York, and within the scope of their employment.

11. Defendants P.O. Schmidt and Officers are sued herein in both their individual and official capacities.

FACTS

12. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest of Plaintiff and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits; therefore, the complaint has been prepared without the benefit of full discovery.

The Incident of December 31, 2013

13. On or about December 31, 2013, at or near West 125th Street and Lenox Avenue, in the County, City and State of New York, at approximately 7:00 a.m., Plaintiff was wrongfully and unlawfully searched, seized, detained, and arrested by Defendants, their agents, servants, and / or employees, without probable cause or justification and charged with PL § 160.10 Robbery in the Second Degree and PL § 265.02 Criminal Possession of a Weapon in the Third Degree (hereinafter the "Arrest").

14. At the time of the subject arrest, Plaintiff was lawfully walking on the sidewalk posing no immediate threat to the safety of self or others.

15. At or near the time and place of the Arrest, without necessity or justification, Defendants P.O. Schmidt, and Officers did intentionally exert improper significant and excessive physical force against Plaintiff, and / or the threat of physical force in restraining Plaintiff without necessity or justification, which caused Plaintiff to sustain injuries and losses.

16. At or near the time and place of the Arrest, officers, agents, employees and / or contractors of Defendant City witnessed Defendant P.O. Schmidt and Officers exert excessive

force against Plaintiff and did not intervene, though they had realistic opportunity to do so.

17. Defendants wrongfully commenced a prosecution against Plaintiff without probable cause or justification under Docket No.: 2014NY001024. On or about November 17, 2015, the New York County Criminal Court dismissed and sealed all criminal charges against Plaintiff.

18. Defendants' actions and / or omissions caused Plaintiff to be wrongfully incarcerated for a period of approximately twenty-two (22) months, and to make numerous appearances in court to defend himself against the aforesaid wrongful charges.

19. At all times relevant to this action, Defendants acted intentionally, willfully, knowingly, negligently, and with reckless disregard for, and deliberate indifference to the rights of Plaintiff.

20. The acts of Defendants prior to and during the course of the Arrest of Plaintiff were the direct result of the failure of Defendant City to properly hire, train, supervise, monitor, and discipline its officers, agents, employees and / or contractors.

21. The acts of Defendants prior to and during the course of the Arrest of Plaintiff were the direct result of policies, practices, and customs developed, implemented, enforced, encouraged, sanctioned, or tolerated by Defendant City.

22. As a result of the aforesaid acts or omissions of Defendants, Plaintiff sustained personal, physical, and emotional injuries and losses including, pain and suffering, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, trauma, shock, fear, humiliation, embarrassment, shame, indignity, damage to his reputation, professional and economic losses, and financial costs and expenses.

23. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

CAUSES OF ACTION

FEDERAL CLAIMS

FIRST CAUSE OF ACTION MUNICIPAL LIABILITY "MONELL" CLAIM

24. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 23 above with the same force and effect as if herein set forth.

25. Defendants P.O. Schmidt and Officers, individually and collectively, within the scope of their employment and authority and under color of State Law, engaged in conduct that constituted customs, policies, procedures, rules, or usages of the City and which were in violation of the rights, privileges, and immunities of Plaintiff, a citizen of the United States and resident of the State of New York, as secured by the United States Constitution.

26. The aforesaid customs, policies, procedures, rules, or usages included but were not limited to: failure to properly investigate before effecting an arrest; utilizing unnecessary and excessive force; failure to ensure that use of force by police officers is properly reported and investigated; failure to appropriately discipline police officers who utilize unnecessary and excessive force, as well as those who supervise said officers; failure to implement measures to ensure that officers are appropriately supervised by qualified and well-trained staff; and failure to intervene when employees, officers, agents, and / or contractors violate well-established statutory and constitutional rights.

27. The aforesaid unlawful policies and practices in tolerating such misconduct resulted in the subject Arrest rendering Defendant City liable to Plaintiff pursuant to Monell v. City of New York, 436 U.S. 658 (1978), and under 42 U.S.C. §1983.

28. The aforesaid conduct was consistent with the institutionalized practices of the NYPD, which were known and previously sanctioned by Defendant City.

29. Despite knowledge of the institutionalized practices of NYPD, Defendant City took no effective actions to end or prevent such practices.

30. Defendant City had prior notice of the injurious actions and practices of Defendants P.O. Schmidt and Officers but took no effective actions to end or prevent the aforesaid Defendants from committing such practices.

31. Defendant City had prior notice that Defendants P.O. Schmidt and Officers had inadequate training regarding the applicable provisions of the Penal Law of the State of New York, and Departmental policy, other applicable laws and federal and state statutory and constitutional protections, but took no effective actions to ensure that he aforesaid Defendants were provided with adequate or appropriate training.

32. Defendant City authorized, tolerated, and ratified the misconduct of employees, officers, agents, and / or contractors, and of Defendants P.O. Schmidt and Officers, specifically, by failing to: discipline employees, officers and agents; take adequate precautions in screening, hiring, educating, informing, training, supervising, promoting, and retaining employees, officers, agents; and failing to establish and maintain a meaningful system for responding to complaint of misconduct, all of which constitute deliberate indifference by Defendant City to Plaintiff's rights secured by the United States Constitution, and deliberate indifference to the physical safety and well-being of Plaintiff.

33. As a direct and proximate cause of Defendants' acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

34. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendant City liable to Plaintiff for punitive damages.

SECOND CAUSE OF ACTION
PURSUANT to 42 U.S.C. § 1983 (FALSE ARREST)

35. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 34 above with the same force and effect as if herein set forth.

36. At all times relevant herein the conduct of the Defendants were subject to 42 U.S.C. §§ 1983, 1985, 1986, and 1988.

37. The detention and arrest of Plaintiff without probable cause and without a lawful warrant was an abuse of power that constituted a seizure within the meaning of the Fourth Amendment of the United States Constitution and was an act taken by P.O. Schmidt and Officers 1-8 with a deliberate indifference to Plaintiff's rights and privileges. The seizure and deprivation of Plaintiff's liberty was unreasonable and without due process of law, in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

38. Acting under the color of law, Defendants achieved a denial of Plaintiff's rights, privileges or immunities secured by the United States Constitution or by Federal law, to wit:

- a. By depriving Plaintiff of his liberty without due process of law, by taking Plaintiff into custody and holding him there against Plaintiff's will.

- b. By making an unreasonable search and seizure of Plaintiff's property without due process of law.
 - c. By conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny Plaintiff equal protection of laws.
 - d. By refusing or neglecting to prevent such deprivations and denials to Plaintiff thereby depriving Plaintiff of the rights, privileges, and immunities as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.
39. Defendant City negligently trained Defendants P.O. Schmidt and Officers.
40. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damages to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

THIRD CAUSE OF ACTION
PURSUANT to 42 U.S.C. § 1983 (EXCESSIVE FORCE)

41. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 40 above with the same force and effect as if herein set forth.
42. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.
43. That Defendants had no legal cause or reason to use excessive force in effectuating Plaintiff's arrest.
44. That Defendants violated Plaintiff's Fourth and Fourteenth Amendment right to be free from unreasonable seizure when they used excessive force against him.

45. That at the time of the arrest or while in custody, Plaintiff did not pose a threat to the safety of the arresting officers.

46. That Plaintiff did not actively resist arrest or attempt to evade arrest.

47. The Defendant City, through its officers, agents, and employees, unlawfully subjected Plaintiff to excessive force while effectuating his arrest.

48. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

49. That by reason of Defendants' acts and omissions, acting under color of law and within the scope of Defendants' authority, in gross and wanton disregard of Plaintiff's rights, subjected Plaintiff to excessive force while effectuating his arrest, in violation of Plaintiff's rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

50. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of Plaintiff's civil rights, including but not limited to the right to be free from the application of excessive force.

51. That upon information and belief, in 2013, Defendants had a policy or routine practice of using excessive force when effectuating arrests.

52. That upon information and belief, it was the policy and / or custom of Defendant City to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

53. That as a result of the above described policies and customs, the officers, staff, agents and employees of Defendant City, believed that their actions would not be properly

monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

54. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant City to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.

55. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, and economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All said injuries may be permanent.

FOURTH CAUSE OF ACTION
PURSUANT to 42 U.S.C. § 1983 (DETENTION AND CONFINEMENT)

56. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 56 above with the same force and effect as if herein set forth.

57. As a result of Defendants' concerted unlawful and malicious detention and confinement of Plaintiff, Defendants deprived Plaintiff of both his right to liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. 1983.

58. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damages to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

FIFTH CAUSE OF ACTION
PURSUANT to 42 U.S.C. § 1983 (RUFUSING OR NEGELECTING TO PREVENT)

59. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 58 above with the same force and effect as if herein set forth.

60. At all times relevant to the complaint, Defendants P.O. Schmidt and Officers, as police officers of the NYPD were acting under the direction and control of Defendant City.

61. Acting under the color of law and pursuant to official policy P.O. Schmidt and Officers, the NYPD and Defendant City knowingly, recklessly and / or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis Defendant policy officers in their duties to refrain from:

- a. Unlawfully and maliciously harassing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- b. Unlawfully and maliciously arresting, imprisoning, and prosecuting a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- c. Conspiring to violate the rights, privileges, and immunities guaranteed to Plaintiff by the Constitution and the laws of the United States and the laws of the State of New York;
- d. Otherwise depriving Plaintiff of his constitutional and statutory rights, privileges and immunities.

62. Defendants City had knowledge of or had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have knowledge that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendants City had the power to prevent or aid in preventing the commission of said wrongs, could have done so

by reasonable diligence, and knowingly, recklessly, or with gross negligence failed or refused to do so.

63. Defendants City and the NYPD directly or indirectly under color of law approved or ratified the unlawful deliberate, malicious, reckless, and wanton conduct of Defendant police officers heretofore described.

64. As a direct and proximate cause of the negligent and intentional acts of Defendants City and the NYPD as set forth in paragraphs 1 to 58 above, Plaintiff suffered physical injury, loss of income, and severe mental anguish in connection with the deprivations of his constitutional and statutory rights guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. § 1983.

65. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of the said injuries may be permanent.

SIXTH CAUSE OF ACTION
PURSUANT to 42 U.S.C. § 1983 (MALICIOUS PROSECUTION)

66. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 65 above with the same force and effect as if herein set forth.

67. That Defendants with malicious intent, arrested Plaintiff and initiated criminal proceedings despite the knowledge that Plaintiff had committed no crime.

68. That all charges against Plaintiff have been dismissed.

69. That there was no probable cause for the arrests and criminal proceedings. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff's rights, deprived

Plaintiff of his liberty when they maliciously prosecuted him and subjected him to unlawful, illegal and excessive detentions, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

70. That upon information and belief, Defendants had a policy and/or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, Plaintiff was maliciously prosecuted despite the fact that he had committed no violation of the law.

71. That upon information and belief, the policy and/or custom of Defendant City to inadequately hire, train, supervise, discipline and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

72. That as a result of the above described policies and customs, Defendant City, its staff, agents and employees of Defendant City believe that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

73. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant City to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.

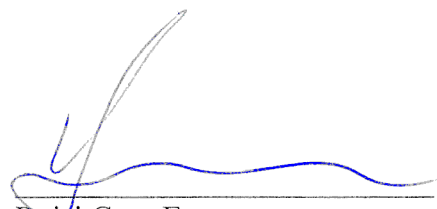
74. That in so acting, Defendant City abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

75. That upon information and belief, in 2013, 2014 and 2015, Defendant City had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

76. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICE ERIC SCHMIDT, Shield No. 11428, AND "JOHN DOES 1-8", PERSONS EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
June 15, 2018



Ruisi Guo, Esq.
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VERIFICATION

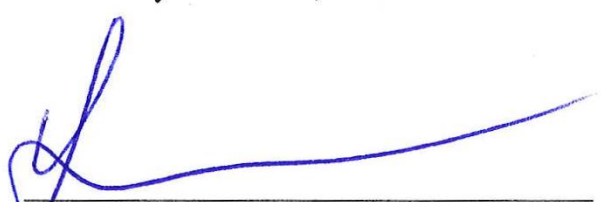
STATE OF NEW YORK)
)ss.:
COUNTY OF NEW YORK)

Barry Hutches, being duly sworn deposes and says that deponent is the Plaintiff in the within action; that deponent has read the foregoing Complaint and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matter therein stated to be alleged upon information and belief, and as to those matters deponent believes them to be true.



Barry Hutches

Sworn to before me to
15th day of June, 2018



Notary Public

RUISI GUO
NOTARY PUBLIC-STATE OF NEW YORK
No. 02GU6355280
Qualified in Queens County
My Commission Expires 03-06-2021